Utilization Request

Date: _____

To: AA Bank (China) Company Limited, _____ Branch/Sub-branch (the "**Lender**")

We refer to the facility letter dated _____ between (among the others, if applicable) the Lender and us (as amended, novated, supplemented, renewed, extended or restated from time to time, the "**Facility Letter**"), which binds and is enforceable against us.

This is a Utilization Request. Unless otherwise defined in this Utilization Request, the terms used herein shall have the same meaning as defined in the Facility Letter.

1. We wish to utilise a Loan on the following terms (the "**Requested Loan**"):

(a) Proposed Utilization Date: _____

(b) Tranche to be utilized (If applicable, please refer to the relevant Facility Tranche under the Facility Letter): _____

(c) Facility to be utilized (Please refer to the relevant Facility name under the Facility Letter): _____

(d) Currency: _____

(e) Amount: _____

(f) Interest Period:

☐ 1 month
☐ 3 months
☐ 6 months
☐ Other (Please specify):_____

(g) Interest Rate: as set out in paragraph _____ below:

(i) Fixed Rate

☐(for Utilization in RMB)_____% per annum (equal to the LPR published by the National Interbank Funding Center of the PRC on _____, for RMB loans with a term of ☐ 1 year / ☐ 5 years, ☐ plus/ ☐ minus _____% per annum)

☐(for Utilization in Foreign Currency)_____% per annum

(ii) _____% of:

☐ SHIBOR
☐ EURIBOR
☐ HIBOR
☐ TIBOR

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(iii) ☐ LPR, for RMB loans with a term of [1]/[5] years. In relation to the Requested Loan under this Utilization Request, "LPR" used herein has the same meaning as defined in the Facility Letter; or (if there is no LPR definition provided in the Facility Letter) "LPR" means the loan prime rate published by the National Interbank Funding Center of the PRC on the first day of each Interest Period applicable to the Utilization, or (if there is no such rate published on such date) such rate most recently published before such date, for RMB loans with the above term.

☐ SHIBOR
☐ EURIBOR
☐ HIBOR
☐ TIBOR
☐ SOFR Simple Reference Rate (Overnight) or (as the case may be) SOFR Reference Rate (Overnight) if so defined
☐ SOFR Compounded Reference Rate (Overnight)
☐ SOFR Reference Rate (Term)
☐ SONIA Reference Rate (Overnight)
☐ TONAR Reference Rate
☐ TORF Reference Rate
☐ €STR Reference Rate
☐ BOE Base Rate

☐ plus _____% per annum
☐ minus _____% per annum

(iv) Other (Please specify): _____

(h) Maturity Date: _____

(i) Purpose (Please specify within the loan purpose scope under the Facility Letter):_____

(Applicable if the Requested Loan is for the purpose of purchasing vehicles and to be disbursed in accordance with the "Disbursement by the Borrower" approach as detailed in the Facility Letter) The/Each vehicle to be purchased is:

(i) ☐ for self-use

☐ for commercial use

(ii) ☐ a new energy vehicle (including Plug-In-Hybrid Electric Vehicles (including Extended Range Vehicles), Pure Electric Vehicles, and Fuel-Cell Vehicles)

☐ a traditional energy vehicle

(j) Payment Instructions: Please credit the proceeds of the Requested Loan to the following account: _____.

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(k) Disbursement: Please credit the proceeds of the Requested Loan in accordance with the following approach as detailed in the Facility Letter:

☐ Disbursement by the Bank
Whether the disbursement to be made to our related party(ies): ☐ Yes / ☐ No
☐ Disbursement by the Borrower

2. We confirm that:

(a) each condition precedent under the Facility Letter applicable to the Requested Loan is satisfied, and will also be satisfied on the Utilization Date of the Requested Loan;

(b) no default (or, if applicable, Event of Default) under the Facility Letter has occurred or is continuing or would occur as a result of the Utilization of the Requested Loan;

(c) the invoices (if any) provided for the Requested Loan are used for the first time as supporting documents for financing, and these invoices will not be repeatedly provided to any other bank for any financing in any form;

(d) we have the full responsibility to ensure that the utilization of the Requested Loan complies with the loan purpose under the Facility Letter and this Utilization Request and matches with the loan disbursement supporting documents; and

(e) the proceeds of the Requested Loan will be used to meet the genuine and legitimate business needs between us and the relevant counterparty, will not be used for any funds flow without genuine and legitimate underlying transactions, and will not in any case be transferred back to us.

This Utilization Request is irrevocable and once accepted by the Lender, shall constitute a part of agreement for the Requested Loan together with the Facility Letter. In case of any conflict between this Utilization Request and the Facility Letter, the provisions in this Utilization Request shall prevail in respect of the Requested Loan.

[This paragraph should be included ONLY for WCL Facility granted to non-NBFI borrower] We hereby undertake and confirm that the proceeds of the Loans utilized under the Facility Letter which are purported to be utilized for working capital purpose have been used for genuine working capital purposes in accordance with the Facility Letter and shall comply with the requirements of the relevant PRC laws and regulations on use of such proceeds. We shall not apply the proceeds for dividend distribution, or investment in financial assets, fixed assets or equity, or towards the stock market, the futures market, the real estate market, or apply the proceeds for on-lending or settlement of negotiable instruments; nor shall we apply the proceeds for production/operation-prohibited areas or purposes unless otherwise stipulated by PRC laws and regulations. Without prejudice to the Lender's any right under the Facility Letter, in the event that any Loan is misappropriated in breach of the loan purpose provisions, the Lender has the right to require us to rectify, adjust the loan risk classification, accelerate and demand prepayment, adjust the disbursement approach, adjust the interest rate, charge default interest, reduce the Facility amount, cease or suspend disbursement, or take other corresponding measures, and pursue legal liabilities against us.

[This paragraph should be included ONLY if the non-NBFI borrower's business scope includes real estate development and the Requested Loan is not for real estate development purpose] We undertake and confirm that the proceeds of the Requested Loan will not be used for any new or construction-in-progress real estate development purpose, and we do not have real estate development project in progress or any other real estate development project plan. Any breach of this paragragh shall constitute an Event of Default under the Facility Letter.

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*[This paragraph should be included ONLY in case of lending to an NBFI borrower]*We hereby undertake and confirm that the proceeds of the Loans utilized under the Facility Letter which are purported to be utilized to meet our capital needs have been used for genuine purposes in accordance with the Facility Letter and shall comply with the requirements of the relevant PRC laws and regulations on use of such proceeds. We shall not apply the proceeds for dividend distribution, or investment in financial assets, fixed assets or equity, or towards the stock market, the futures market, the real estate market, or apply the proceeds for *[If the borrower's business scope includes lending or financing, the square bracketed language is not applicable]*[on-lending or] settlement of negotiable instruments; nor shall we apply the proceeds for production/operation-prohibited areas or purposes unless otherwise stipulated by PRC laws and regulations. Without prejudice to the Lender's any right under the Facility Letter, in the event that any Loan is misappropriated in breach of the loan purpose provisions, the Lender has the right to require us to rectify, adjust the loan risk classification, accelerate and demand prepayment, adjust the disbursement approach, adjust the interest rate, charge default interest, reduce the Facility amount, cease or suspend disbursement, or take other corresponding measures, and pursue legal liabilities against us.We acknowledge that the proceeds of the Requested Loan are sourced from the Lender's on-balance-sheet funds, and we further undertake and confirm that we will not utilize the proceeds of the Requested Loan towards repayment of any of our existing debt under any lending granted by any financial institution ("同业借款") sourced from its off-balance-sheet funds.

Yours faithfully

For and on behalf of

_____

_____
Authorized Signature(s) and Company Chop

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